The present Delimitation Commission was entrusted with the work of delimiting the Parliamentary and Assembly Constituencies in the UT of J&K on the basis of 2011 census and in accordance with the provisions of the J&K Reorganisation Act, 2019 and the provisions of the Delimitation Act, 2002. The 2011 census population had increased more than 100% over the 1981 census population of J&K. Since the last delimitation was based on 1981 census, the nature of constituencies had to a large extent become malapportioned.

Having regard to the relevant provisions of the Constitution of India (Article 330 and Article 332), the provisions of the J&K Reorganisation Act, 2019 and the provisions of the Delimitation Act, 2002, the number of seats to be reserved for the SCs and the STs in the Legislative Assembly of the UT of J&K has been worked out on the basis of 2011 census. It is worthwhile to mention here that the Constitution of the erstwhile State of J&K did not provide for reservation of seats for the STs in the Legislative Assembly.

Order Of The Commission

In May 2022[13], the Commission made the final order in respect of the delimitation of Parliamentary and Assembly constituencies in the UT of J&K. The various provisions of this order are as follows:

1. The Commission has treated the J&K as a single entity for the purpose of delimitation. Consequently, all 5 Parliamentary constituencies now have equal number of 18 Assembly Constituencies.

2. Anantnag – Rajouri Parliamentary Constituency has been carved out by combining Anantnag area of the Kashmir region and Rajouri & Poonch area of the Jammu region.

3. Out of the total 90 Assembly constituencies in the J&K, 43 are for the Jammu region and 47 are for the Kashmir region.

4. Creation of 6 new Assembly constituencies for the Jammu region and 1 new Assembly constituency for the Kashmir region.

5. Reservation of 9 Assembly constituencies for the STs. Out of these, 6 are in the Jammu region and 3 are in the Kashmir region.

6. Reservation of 7 Assembly constituencies for the SCs.

7. The Commission has also changed the names of some Assembly constituencies. One Assembly constituency is named as Shri Mata Vaishno Devi.

Recommendations Of The Commission[14]

During the public hearing, the Commission received number of representations from the Kashmiri migrants and the displaced persons from Pakistan occupied Jammu and Kashmir (PoJ&K)[15]. The delegations of Kashmiri migrants represented before the Commission that they were persecuted and forced to live in exile as refugees in their own country for the last three decades. It was urged that in order to preserve their political rights, seats may be reserved for them in the J&K Assembly and Parliament. The displaced persons from PoJ&K also requested the Commission to reserve few seats for them in the J&K Assembly. Accordingly, the Commission made the following recommendations to the Central Government: